

Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,**

v.

Subhi Abdelhalim; CSAA Insurance Exchange; Phillips,
Spallas & Angstadt LLP; Priya D. Navaratnasingham;
Alberto Reyna; Michael R. Chambers; Carbone, Smith &
Koyama; and Does 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**DECLARATION OF PLAINTIFF
FRANCISCUS DYLAN ROSARIO;
EXHIBIT A: GMAIL E-MAIL THREAD
(MEET-AND-CONFER / SEQUENCING)**

(Code Civ. Proc., § 2015.5; CCP § 1005(b); Cal. Rules of
Court, rule 2.250 et seq.)

MFL-SAC hearing:

Date: May 6, 2026
Time: 9:00 a.m.
Dept.: 301
Judge: Hon. Christine Van Aken

Motion to strike (CCP § 436) (FAC):

Date: May 22, 2026
Time: 9:00 a.m.
Dept.: 301

Complaint filed: Dec. 23, 2025
FAC filed: Feb. 25, 2026

1 **DECLARATION OF PLAINTIFF FRANCISCUS DYLAN ROSARIO**

2 I, Franciscus Dylan Rosario, declare as follows:

- 3 1. I am Plaintiff, in pro per, in the above-captioned action. I have personal knowledge of the mat-
4 ters stated herein, and, if called as a witness, I could and would competently testify thereto.
- 5 2. **Exhibit A** is a printout of the Gmail e-mail **thread** captioned **Re: Rosario v. Abdelhalim,**
6 **et al. — Opposition — CGC-25-631801**. I received the printout, including a message from
7 **Tyler J. O’Connell** (SBN 346673), Porter Scott, at toconnell@porterscott.com, on or
8 about the **late morning of April 24, 2026** (Pacific Time) (as timestamped in the printout,
9 approximately **11:45 a.m.**). The **Exhibit A** printout includes, among other items, e-mail I sent
10 to defense counsel on or about **April 23, 2026**. I offer **Exhibit A** to complete the meet-and-
11 confer and correspondence record regarding Plaintiff’s **Motion for Leave to File a Second**
12 **Amended Complaint**, set for **May 6, 2026, Department 301**, and the **Motion to Strike** the
13 First Amended Complaint under CCP § 436, set for **May 22, 2026, Department 301**. In this
14 paragraph, I do not adopt counsel’s substantive statements in the **Exhibit A** text (including,
15 as the message recites, amendment while a special motion to strike is pending) except to
16 authenticate the **Exhibit A** printout for this record.
- 17 3. **Exhibit A** does not address Nguyen-Lam v. Cao (2009) 171 Cal.App.4th 858, JKC3H8
18 v. Colton (2013) 221 Cal.App.4th 468, or Foreman & Clark Corp. v. Fallon (1971)
19 3 Cal.3d 875—the three authorities on which my papers and reply in support of leave to
20 amend rely for the sequencing and supersession question in this case.
- 21 4. I submit this declaration and **Exhibit A** so the Court has a complete meet-and-confer and
22 correspondence record before the **May 6, 2026** hearing on the Motion for Leave to File a
23 Second Amended Complaint.

24 I declare under penalty of perjury under the laws of the State of California that the foregoing is
25 true and correct. Executed on April 27, 2026, at Rohnert Park, California.

Dated: April 27, 2026



/s/ Franciscus Dylan Rosario

FRANCISCUS DYLAN ROSARIO

Plaintiff, In Pro Per

7624 Melody Drive

Rohnert Park, CA 94928

Tel: 650.488.7510

E: soltrinox@gmail.com



Tyler O'Connell

11:45 AM (1 hour ago)

to me, Monique, Chad, Veronica, Maria 

Mr. Rosario,

None of your cited authorities apply to the current situation where, here, an Anti-SLAPP motion is pending. Your position on this issue—and generally in this litigation—has absolutely zero merit and is obviously designed to waste my time, my clients' resources, and the Court's time. The Court is not going to appreciate your incessant clogging of the docket with meritless "motions," "bench briefs," and "supplemental" filings.

Moreover, your litany of case authorities cited here is completely irrelevant to the status of this litigation and appears to nothing more than an AI-generated recitation of general principles of amendment, which adds nothing to the analysis of this situation here: where an Anti-SLAPP motion is pending. Put simply, you cannot obtain the relief you seek, here, a motion for leave to amend the pleadings while an Anti-SLAPP motion is pending. Full stop. Please actually read the words of my Opposition to your motion for leave to amend. Uploading it to ChatGPT, and receiving spoon-fed AI hallucinations, is not a proper stand-in for legal analysis.

Regards,



Tyler J. O'Connell
Attorney

2180 Harvard St. | Suite 500 | Sacramento, CA 95815

T | 916.929.1481 x 540 F | 916.927.3706

www.porterscott.com

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From: Dylan Rosario <soltrinox@gmail.com>

Sent: Thursday, April 23, 2026 7:04 PM

To: Monique Schubert <mschubert@porterscott.com>

Cc: Chad S. Tapp <ctapp@porterscott.com>; Tyler O'Connell <toconnell@porterscott.com>; Veronica Jackson <vjackson@porterscott.com>; Maria Reyes <mreyes@porterscott.com>

Subject: Re: Rosario v Abdelhalim, et al - Opposition - CGC-25-631801

External email



Dylan Rosario <soltrinox@gmail.com>

12:28 PM (26 minutes ago)

to Tyler, Monique, Chad, Veronica, Maria 

Dear Mr. O'Connell,

Your Anti-SLAPP motion and the § 436 Motion to Strike/Demurrer are deficient on their face. The First Amended Complaint remains substantially pleaded, and your opposition notably omits controlling Supreme Court precedent.

Regardless of your efforts to manufacture total immunity for insurance companies and their counsel, independent actions can and do arise from extrinsic fraud, such as misrepresentations made to the court regarding pretrial discovery and possession. That's a typical deny posture. These misrepresentations are well-documented in the record.

The court's reliance on the candor of your firm and its financial backer, CSAA, led to adverse rulings against me based on inaccurate statements regarding the possession of records. This constitutes a violation of the law and is the definition of extrinsic fraud intended to inhibit my ability to present evidence in a fair manner.

I maintain the right to seek equity from the court on this matter. You will need to provide a substantive explanation for these misrepresentations and demonstrate how they were not prejudicial given the specific rulings made against me.

Anti-SLAPP: Fails at prong 1 because an independent action to set aside a judgment for extrinsic fraud is not "arising from" protected activity (Kulchar, Silberg, Park). Fails at prong 2 because Plaintiff tenders prima facie evidence of concealment and process-abuse. Privilege arguments collapse because § 47(b) does not reach extrinsic fraud.

§ 436 MTS / Demurrer: Fails because (a) extrinsic-fraud vacatur is a recognized cause of action (Kulchar, Stevenot, Rappleyea); (b) damage items are not "irrelevant" as a matter of law (PH II); (c) collateral estoppel requires actual litigation of the extrinsic-fraud issue, which by definition did not occur (Lucido); and (d) at worst, leave to amend defeats any cure-able defect (Blank, Goodman).

Regards,

Dylan Rosario